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Maritime Employment Contract:

Article 168:

The terms "ship," "shipowner," "master," "seafarer," and "maritime employment contract" as used in this Part shall have the meanings assigned to them under the Commercial Maritime Law.



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All employment contracts of seafarers working on board a vessel must be recorded in the vessel's logs or attached thereto. These contracts must be drafted in a clear manner and must stipulate whether they are concluded for a fixed term or for a voyage. If concluded for a fixed term, the duration must be clearly specified. If for a voyage, the city or seaport where the voyage ends must be specified, as well as the stage of the vessel's unloading or loading in that port at which the contract terminates.

Article 171:

The maritime employment contract must stipulate the date and place of its conclusion, the name of the shipowner, the name, title, age, nationality, and domicile of the seafarer, the type of work assigned to them and how it is to be performed, the certificate that permits them to work on maritime navigation, the seafarer's identity document, the amount of wages, and the duration of the contract. If the contract is for a single voyage, it must specify the city or seaport where the vessel unloads and the stage of the vessel's unloading or loading in that port at which the contract terminates, as well as other details of the contract.

The contract shall be made in triplicate: one copy for the shipowner, one copy for the captain to be kept on board the vessel, and one copy for the seafarer.

Article 172:

The rules and conditions of work on board the vessel must be posted in the vessel and in the section designated for its crew. These rules and conditions must include the following:

1. The obligations and duties of seafarers, the rules for organizing work on board the vessel, the service schedules, and the daily working hours.
2. The obligations of the shipowner towards the seafarers regarding fixed wages, bonuses, and other types of remuneration.
3. The procedures for suspending or deducting wages and for paying wage advances.
4. The place and time for wage settlement and the final calculation thereof.
5. The rules and standards for the provision of food and accommodation on board the vessel.
6. The treatment of seafarers' illnesses and injuries.
7. The conduct of seafarers and the conditions for their repatriation to their home country.
8. The paid annual leave of seafarers.
9. End-of-service gratuity and other compensation payable upon the termination or expiry of the employment contract.

Article 173:

The following are conditions for working as a seafarer:

1. Having completed eighteen years of age.
2. Holding a certificate that permits them to work in maritime service.
3. Being medically fit.

Article 174:

All entitlements of the seafarer shall be paid in the official currency. Payment may be made in foreign currency if it is due while the vessel is outside territorial waters, and the seafarer agrees to it.

The seafarer may request the employer to pay their due cash wages to a designated person.

Article 175:

If the wage is shortened for any reason, whether voluntary or involuntary, this shall not result in a reduction of the wages of a seafarer employed under a maritime employment contract for a

single voyage.

Article 176:

If the wage is determined by a share of the profits or the vessel's earnings, the seafarer shall not be entitled to compensation in the event of the voyage's cancellation, nor to an increase in wages upon the voyage's delay or extension. However, if the delay or extension arises from the actions of the shippers, the seafarer shall be entitled to compensation from the shipowner.

Article 177:

The seafarer shall be entitled to their wages if the vessel is seized, sinks, or becomes unseaworthy, up to the day the incident occurs.

Article 178:

Without prejudice to the provisions governing the seafarer employment contract under this Law, the Minister shall, in coordination with the General Transport Authority, issue regulations governing the seafarer employment contract. These regulations shall include provisions relating to the rights and obligations of both parties to the contract, living conditions, safety, food, accommodation, and recreational facilities on board the vessel, measures to be taken by the employer to prevent occupational injuries and diseases, healthcare, working hours, rest periods, leave entitlements, training and skill development of seafarers, repatriation of seafarers, issuance of a certificate of compliance with the provisions of this Law, inspection and monitoring mechanisms to ensure vessels' compliance, determination of violations and the penalties imposed for committing them, as well as provisions for the amicable settlement of complaints.

Article 179:

The working hours on board a vessel while at sea shall not exceed fourteen hours in any twenty-four-hour period, nor seventy-two hours in any seven-day period.

Article 180:

Every seafarer who participates in assisting or rescuing another vessel shall have a share in the reward due to the vessel on which they are employed, regardless of the type of wage they receive.

Article 181:

If a seafarer dies during the voyage, their heirs shall be entitled to their wages up to the day of death, if the wage is calculated on a monthly basis. If their wage is calculated per voyage, the

heirs shall be entitled to receive the full voyage wage. If the wage is a share of the profits, the full share shall be due. The amounts due to a deceased, missing, or uncontactable seafarer shall be deposited with the labor office at the port of arrival in the Kingdom.

Article 182:

The employer may also terminate the contract without prior notice and without compensation if the voyage is canceled before its commencement due to circumstances beyond the shipowner's control, provided that the wages are based on a per-voyage agreement, unless otherwise stipulated in the contract.

Article 183:

Upon the expiry or termination of the contract, the employer shall be obligated to the following:

1. To return the seafarer to the port from which they departed at the commencement of the contract's execution.
2. To bear the cost of their food and accommodation until they reach that port.

Article 184:

The shipowner shall be obligated to repatriate the seafarer to their home country in the following cases:

1. If the voyage is canceled by the shipowner after the vessel has sailed.
2. If the voyage is canceled after the vessel has sailed due to a prohibition of trade with the designated destination.
3. If the seafarer is removed from the vessel due to illness, injury, or disability.
4. If the vessel is sold in a foreign country.
5. If the seafarer¹ is dismissed from service during the voyage without a lawful justification.
6. If the seafarer's contract expires in a port other than the one stipulated in the contract.

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